

24STCV15204 24STCV15204

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

JANE ROE A.T., an individual,

Plaintiff,

v.

PALMDALE SCHOOL DISTRICT, a public entity; and DOES 1 through 60, inclusive,

Defendants.

Case Number 24STCV15204

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 16, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury action arising from the alleged sexual assault of a child occurring on a school campus. Plaintiff moves the Court for an order compelling the Los Angeles County District Attorney's Office's compliance with a Subpoena for Production of Business Records.

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On June 18, 2024, Plaintiff filed her Complaint against Defendant Palmdale School District (Defendant).

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On December 11, 2024, Defendant filed a demurrer to the complaint.

On February 3, 2026, the Court sustained the demurrer with leave to amend.

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On February 27, 2025, Plaintiff filed her First Amended Complaint (FAC), asserting causes of action for (1) Negligence based on Cal. Gov. Code §§ 815.2 and 820 against Defendant and Doe Defendants 1 through 20; (2) Failure to Report Suspected Child Abuse (Cal. Gov. Code §§ 815.2 and 820) against Defendant and Doe Defendants 26 through 40; (3) Negligent Supervision of a Minor (Cal. Gov. Code §§ 815.2 and 820) against Defendant and Doe Defendants 26 through 40; (4) Negligence against Doe Defendants 41 through 50.

Specifically, Plaintiff alleges that she is a victim of childhood sexual assault by Wayne Anthony Martin (Martin) that occurred when she was approximately 12 to 14 years' old while she was a student at Mesa Intermediate School in Palmdale, CA. (FAC, ¶¶ 16-17.) Plaintiff further alleges that Martin taught at Mesa Intermediate School and in 1999, he was arrested by Los Angeles County Sheriff's deputies, charged with molesting a student, and thereafter convicted of violating Cal. Pen. Code § 288(a) and was ordered to register as a sex offender. (FAC ¶¶ 30-31.) Martin died on September 27, 2014. (FAC, ¶ 32.)

On April 01, 2025, Defendant filed a Demurrer to the FAC.

On May 6, 2025, the Court sustained the demurrer in part without leave to amend as to the third cause of action, and overruled in part as to the first and second causes of action.

On July 21, 2025, Defendant filed its answer to the FAC.

On March 4, 2026, Plaintiff filed a motion to compel the Los Angeles County District Attorney's Office's (LADA) compliance with a Subpoena for Production of Business Records.

On March 9, 2026, Plaintiff filed an amended notice of hearing on Plaintiff's motion to compel.

On April 24, 2026, LADA, a non-party, filed an opposition to Plaintiff's motion to compel.

On April 30, 2026, Plaintiff filed a reply.

On May 7, 2026, Plaintiff's motion to compel compliance with the Subpoena came on for hearing. The Court denied the motion with respect to the production of the materials withheld pursuant to *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, 1041, and granted production of transcripts of court hearings and trial. The Court further ordered Defendant to file a declaration to substantiate its work product objections by May 21, 2026, ordered Plaintiff to file any reply to the declaration by May 28, 2026, and continued the hearing to June 4, 2026. (Minute Order dated 5/7/26.)

On May 26, 2026, the Court entered as Order a joint stipulation to continue the hearing and all related deadlines to July 16, 2026. Defendant's deadline to file and serve its work product declaration was continued to July 2, 2026 (two weeks prior to the hearing) and Plaintiff's reply deadline was continued to July 9, 2026 (one week prior to the hearing).

On July 2, 2026, Defendant filed its declaration of special assistant Michele A. Hanisee in support of Defendant's work product objections to Plaintiff's subpoena.

On July 9, 2026, Plaintiff filed the declaration of Gizem Gures in reply to Defendant's declaration.

II. Legal Standard

Standard for Motion to Compel Compliance and Work Product Privilege – “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production” (Code Civ. Proc. § 2025.480.) “This motion shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.” (Ibid.)

“A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances.” (Code Civ. Proc., § 2018.030, subd. (a).) “The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice.” (Id. at subd. (b).)

Shepherd v. Superior Court (1976) 17 Cal.3d 107 (overruled on other grounds in *People v. Holloway* (2004) 33 Cal.4th 96) held that “[t]he district attorney is not an ‘attorney’ who represents a ‘client’ as such. He is a public officer, under the direct supervision of the Attorney General (Cal. Const., art. V, § 13), who ‘represents the sovereign power of the people of the state, by whose authority and in whose name all prosecutions must be conducted.’... the extent to which the fruits of his investigations are entitled to confidentiality is governed entirely by provisions governing official information.” (*Shepherd*, supra, 17 Cal.3d at pp. 121-122.) “[B]ecause the district attorney does not have ‘a ‘client’ as such,’ confidentiality regarding the fruits of investigations of a public prosecutor are governed exclusively by Evidence Code section 1040, which controls the assertion of claims for governmental privilege for official information.” (*People ex rel. Lockyer v. Superior Court* (2000) 83 Cal.App.4th 387, 399.)

“A public entity has a privilege to refuse to disclose official information, and to prevent another from disclosing official information, if the privilege is claimed by a person authorized by the public entity to do so” and either (1) disclosure is forbidden by an act of Congress or statute of this state, or (2) disclosure of the information is against the public interest because there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice. (Evid. Code, § 1040, subd. (b).) However, “[a] prosecuting attorney is not required to disclose any materials or information which are work product as defined in subdivision (a) of Section 2018.030 of the Code of Civil Procedure, or which are privileged pursuant to an express statutory provision, or are privileged as provided by the Constitution of the United States.” (Pen. Code, § 1054.6.)

"The protection of information from discovery on the ground that it is privileged or that it is a protected work product under Chapter 4 (commencing with Section 2018.010) is waived unless a specific objection to its disclosure is timely made during the deposition." (Code Civ. Proc., § 2025.460.) "If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc., § 2031.240. subd. (c)(1).)

III. Discussion

Application – LADA asserts the work product privilege for seven documents, which are described on the privilege log as follows:

1. Case File Cover with DDA notes re case events, plea offers, dispositions, bail, directions to staff – authored by DDAs Mokayef & Jackson;
2. Handwritten Statement of Facts for DA File, author unknown, with attorney impressions;
3. Disposition Report by DDA Mokayef containing attorney impressions, opinions and conclusions;
4. Fax: cover sheet and one page from DDA Mokayef to Evett, Notes impressions re case/witness statements;
5. Attorney Chrono Notes Page with entries by DDA Mokayef and one or two unknown others. Notes re discussions with victim/witnesses, case preparation;
6. Information Pleading Instructions Form. Internal notes re filing decision;
7. Police Data Worksheet Notes about what charges and enhancements to file for what victims, dates, codes, forms, etc.

(Gures Decl., Ex. 1.)

LADA initially failed to provide a declaration of an individual authorized to assert the work product privilege in its opposition to Plaintiff's motion to compel compliance. However, LADA now provides the Declaration of Special Assistant Michele A. Hanisee (Hanisee) in support of LADA's work product objections. Hanisee declares that she is employed with LADA as a Deputy District Attorney (DDA) in the Legislative Affairs Division and previously served as the Special Assistant and Custodian of Record for LADA in the present matter. (Hanisee Decl., ¶¶ 2-3.) Hanisee declares that she oversaw all civil subpoenas to LADA, reviewed the documents requested by Plaintiff's subpoena, and prepared the Privilege Log served on Plaintiff. (Id at ¶ 5.) Hanisee states that on review of the requested documents, she determined that Plaintiff sought confidential information protected by the work product doctrine, Evidence Code section 1040 governing privilege of official documents, and the constitutional right to privacy. (Id at ¶ 5.)

Hanisee notes that the official policy of LADA is to withhold internal memorandum, notes, annotations, and observations reflecting an attorney's trial preparation and strategy, and on review, she determined that many of the requested documents included internal attorney notes and observations, the release of which would violate LADA's policy regarding disclosure. (Id at ¶ 6.) Hanisee further contends that disclosure of confidential evidence and sensitive information including potential witness statements could deter future investigative process and the trust witnesses and victims have with LADA, and therefore, maintenance of confidentiality in the prosecutorial process is crucial. (Id at ¶ 7.)

Hanisee further states that as the prosecuting attorneys, LADA may assert the attorney work product privilege, and that Plaintiff's request for information including attorney notes, impressions, conclusions, and legal strategy are absolutely protected by the work product doctrine. (Id at ¶ 9.) Furthermore, Hanisee states that as a public entity, LADA has the privilege to refuse disclosure of official information and prevent disclosure from another, and that the internal documents Plaintiff requests were created by the district attorneys in the course of their duty, were not officially disclosed to the public, contain notes, impressions, opinions, legal theories, and conclusions of assigned attorneys in preparation for trial, and disclosure thereof would expose confidential litigation strategies and evaluation methods used in prosecutorial discretions and would undermine the ability of prosecutors to candidly evaluate cases and prepare for litigation. (Id at ¶¶ 10-11.) Finally, Hanisee argues that disclosure of the documents in question would violate the privacy of attorneys, officers, and witnesses involved in the preparation of the criminal proceedings and that said records are investigatory files of a criminal prosecution, which are protected as confidential information. (Id at ¶¶ 13, 15.)

In opposition, Plaintiff argues Hanisee's Declaration does not sufficiently identify the specific factual content contained in each withheld document, does not distinguish factual material from attorney analysis, does not state whether redactions were considered, and does not explain why any document must be withheld in full. (Gures Decl., ¶ 4.) Plaintiff argues the descriptions for the seven entries for which the work product privilege was asserted reflect that the documents are mixed factual, administrative, and potentially attorney material, and Hanisee's Declaration does not provide the particularized showing required to withhold the documents in full. (Ibid.)

Here, the Court finds that LADA has provided sufficient information to invoke the work product doctrine. LADA produced a privilege log identifying seven specific documents and establishing the factual basis for invoking work product privilege. Furthermore, Plaintiff's argument that these documents are 'mixed' in that they contain factual, administrative, and attorney work is not convincing. Included in the documents Plaintiff seeks to obtain are DDA notes, handwritten statements of facts with attorney impressions, reports written by a DDA with impressions, opinions, and conclusions, a fax from a DDA with notes and impressions regarding the case and witness statements, attorney chrono notes and notes regarding victim and witness discussions and case preparation, internal notes regarding filing decisions, and notes regarding charges and enhancements. This information is sufficient to establish that the documents requested are attorney notes, impressions, conclusions, and case strategy subject to privilege pursuant to Penal Code section 1054.6 and Code of Civil Procedure section 2018.030.

Accordingly, Plaintiff's motion is DENIED as to the documents identified as work product on the privilege log.

IV. Conclusion

Plaintiff Jane Roe A.T.'s Motion to Compel Los Angeles County District Attorney's Office's Compliance with Subpoena for Production of Business Records is DENIED as to documents for which the work product privilege was asserted.